



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

HB 2938: mandatory rounding method; cash transactions

MARTINEZ SUBSTITUTE FLOOR AMENDMENT

1. Adds an emergency clause.
2. Contains the language of the Commerce Committee amendment.

MARTINEZ SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2938

I move the following SUBSTITUTE amendment to the COMMERCE Committee Amendment to HOUSE BILL 2938 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Heading change

3 The chapter heading of title 44, chapter 38, Arizona Revised
4 Statutes, is changed from "BUSINESSES EXEMPT FROM MASK MANDATE" to
5 "BUSINESSES GENERALLY".

6 Sec. 2. Title 44, chapter 38, article 1, Arizona Revised Statutes,
7 is amended by adding section 44-7952, to read:

8 44-7952. Cash transactions; mandatory rounding of transaction
9 totals; notice; enforcement

10 A. IF ONE-CENT COINS ARE NOT AVAILABLE OR ARE NOT USED BY A SELLER
11 AT A POINT OF SALE, THE SELLER SHALL APPLY SWEDISH ROUNDING TO A TOTAL
12 TRANSACTION AMOUNT THAT ROUNDS THE TOTAL TRANSACTION AMOUNT TO THE NEAREST
13 FIVE-CENT INCREMENT. IF A TOTAL TRANSACTION AMOUNT ENDS:

14 1. IN ONE OR TWO CENTS, THE TOTAL TRANSACTION AMOUNT IS ROUNDED
15 DOWN TO THE NEAREST MULTIPLE OF FIVE CENTS.

16 2. IN THREE OR FOUR CENTS, THE TOTAL TRANSACTION AMOUNT IS ROUNDED
17 UP TO THE NEAREST MULTIPLE OF FIVE CENTS.

18 3. IN SIX OR SEVEN CENTS, THE TOTAL TRANSACTION AMOUNT IS ROUNDED
19 DOWN TO THE NEAREST MULTIPLE OF FIVE CENTS.

20 4. IN EIGHT OR NINE CENTS, THE TOTAL TRANSACTION AMOUNT IS ROUNDED
21 UP TO THE NEAREST MULTIPLE OF FIVE CENTS.

22 B. SWEDISH ROUNDING APPLIES TO A FINAL TOTAL TRANSACTION AMOUNT OF
23 A CASH TRANSACTION AFTER TAXES, FEES AND OTHER CHARGES ARE CALCULATED.

24 C. SWEDISH ROUNDING DOES NOT APPLY TO A TRANSACTION THAT IS PAID BY
25 A CREDIT CARD, DEBIT CARD, ELECTRONIC FUNDS TRANSFER, MOBILE PAYMENT
26 APPLICATION OR OTHER NON-CASH PAYMENT METHOD.

1 D. A SELLER THAT IS SUBJECT TO THIS SECTION SHALL POST A NOTICE
2 THAT IS VISIBLE TO CUSTOMERS AT THE POINT OF SALE STATING "CASH
3 TRANSACTIONS ARE ROUNDED TO THE NEAREST FIVE-CENT INCREMENT PURSUANT TO
4 STATE LAW".

5 E. A SELLER MAY NOT APPLY A ROUNDING METHOD OTHER THAN SWEDISH
6 ROUNDING.

7 [F. A SELLER SHALL CALCULATE AND REMIT ALL TAXES AND FEES THAT ARE
8 IMPOSED BY A STATE OR MUNICIPAL TAXING AUTHORITY BASED ON THE SALES PRICE
9 BEFORE THE CASH TRANSACTION WAS ROUNDED.]

10 ~~[F.]~~ [G.] THIS SECTION SHALL BE ENFORCED BY THE WEIGHTS AND
11 MEASURES SERVICES DIVISION OF THE ARIZONA DEPARTMENT OF AGRICULTURE
12 PURSUANT TO TITLE 3, CHAPTER 19. THE DIVISION MAY ISSUE WARNINGS AND
13 ORDERS AND IMPOSE CIVIL PENALTIES IN ADDITION TO OTHER ENFORCEMENT
14 MEASURES.

15 [H. A SELLER IS NOT IN VIOLATION OF ANY STATE OR MUNICIPAL
16 REQUIREMENT, LAW, REGULATION OR STANDARD IF THE ACTION IS BASED ON
17 COMPLIANCE WITH THIS SECTION.]

18 ~~[G.]~~ [I.] THIS SECTION IS INTENDED TO OPERATE CONSISTENTLY WITH
19 FEDERAL LAW THAT GOVERNS UNITED STATES COINAGE AND LEGAL TENDER.

20 ~~[H.]~~ [J.] THIS SECTION DOES NOT:

21 1. DECLARE ANY COIN OR CURRENCY INVALID AS LEGAL TENDER.

22 2. REQUIRE ACCEPTANCE OR REFUSAL OF ANY SPECIFIC DENOMINATION OF
23 THE UNITED STATES COIN OR CURRENCY.

24 3. PREEMPT, CONFLICT WITH OR SUPERSEDE ANY PROVISION OF FEDERAL LAW
25 REGULATION.

26 Sec. 3. Legislative intent

27 The legislature intends that section 44-7952, Arizona Revised
28 Statutes, as added by this act, protects businesses and governmental
29 agencies in this state.

30 <<Sec. 4. Emergency

31 [This act is an emergency measure that is necessary to preserve the
32 public peace, health or safety and is operative immediately as provided by
33 law.]>>

34 Enroll and engross to conform

35 Amend title to conform

TERESA MARTINEZ

2938FloorMARTINEZ.docx

02/17/2026

02:00 PM

H: PB/l's

130HXWDCN